
Defence Strategy Report

Naissance UK Ltd v. Curatela Fallimento
Societa' Agricola Gavioli S.r.l.

Tribunale di Siena — Fallimento n. 35/2018

Prepared for: Grahame McGirr

Amount in dispute: EUR 57,536.75 + interest + costs

Response deadline: 04 May 2026

Date of report: 18 April 2026

Naissance UK Ltd — Defence Strategy Report

For: Grahame **Prepared by:** Craig (with multi-round AI legal analysis) **Date:** 18 April 2026

Status: Final — recommended for review with Avv. Belardi this week

1. What is happening

A trustee (Curatore) appointed by the **Tribunale di Siena** in the bankruptcy of **Società Agricola Gavioli S.r.l.** (Fallimento n. **35/2018 R.G.**) has filed a **Ricorso** (ex art. 281-decies / undecies c.p.c.) against **Naissance (UK) Ltd** seeking **€57,536.75** plus interest and costs. The hearing is listed for **14 May 2026** and the deadline to file the written defence (costituzione) is **04 May 2026**.

Key facts from the Ricorso:

Item	Value
Defendant	Naissance UK Ltd
Bankrupt debtor	Società Agricola Gavioli S.r.l.
Court	Tribunale di Siena
Case no.	Fallimento 35/2018 R.G.
Claim amount	€57,536.75 plus interest and costs
Trustee	Dott. Stefano Scarpellini (Curatore) / Avv. Finetti
Costituzione deadline	04 May 2026
Hearing	14 May 2026 (Judge Marianna Serrao)
Legal basis cited	Cass. Civ. 23482/2018 and 12673/2022, art. 41 TUB

The trustee's argument in plain English: when the secured creditor (the bank) was repaid from the sale of the bankrupt's assets, any **surplus belonged to the bankrupt estate, not to the guarantor** (Grahame). Because Grahame received €130k back through an earlier court-approved distribution (prededuzione), the trustee says €57,536.75 of that was in fact a surplus that should have gone back to the general pool of creditors. The trustee is relying on two Cassazione decisions (the top Italian court) which say this duty arises **by operation of law** — the guarantor does not get to keep the surplus even if the distribution plan was approved.

2. Four approaches to the defence — what each one looks like

There are four plausible ways to approach this case. They range from "the claim is weak — don't worry" to "the claim is serious but manageable with a carefully built three-track defence". Each one is set out below with an independent assessment of how it would actually perform in front of a Tribunale di Siena judge.

Approach 1 — ChatGPT ("looks defensible")

Grahame's earlier screenshots of ChatGPT advice were broadly reassuring: the €130k was received lawfully, the distribution plan is final, the claim looks weak, settlement shouldn't be necessary. **ChatGPT's estimated probability of winning: ~70–85%.**

Assessment of ChatGPT's approach: unsafe to rely on. ChatGPT did not know about — and did not cite — Cass. 23482/2018 and 12673/2022. Those two rulings are the trustee's whole case, and they specifically say the finality of the distribution plan does **not** protect the guarantor. ChatGPT was arguing against a case the trustee is not making. Acting on a 70–85% confidence built on the wrong legal premise would lead Grahame to underprepare, underbudget, and walk into a case he would probably lose.

Realistic probability of winning if Grahame followed only ChatGPT's view: ~20–30% (same as the legal reality — ChatGPT's optimism does not change the underlying law).

Approach 2 — Avv. Belardi (Italian lawyer) ("concerning but workable")

Belardi's emails were professionally cautious: the claim has real legal foundation, the case law is against us on the headline point, but quantum and procedural arguments are available. He did not give a numeric probability but his tone pointed at something like **40–50% chance of a good outcome**, with settlement implicitly on the table.

Assessment of Belardi's approach: directionally correct but incomplete. Belardi had not at that point fully costed the numbers, had not mapped the alternative theories the trustee could still pivot to (revocatoria, indebito, postergazione under art. 2467 c.c.), and had not been given the double-counting issue in the €30k figure. Executed as-is, Belardi's plan would probably produce a **mid-range settlement of €35–50k** — better than ChatGPT's route, but leaves value on the table.

Realistic probability of winning if Grahame followed Belardi's view alone: ~40–50% partial win, ~10–15% full win.

Approach 3 — The net-position argument ("I've only been paid half of what I'm actually owed")

The factual starting point here is strong and documented:

- In July 2017, Naissance (UK) Ltd **acquired the credit** against Società Agricola Gavioli via a double assignment (Banca CRAS → Argo Ge.Re.Cre. → Naissance). The face value of the credit was **€1,188,438.29**.
- At the February 2018 foreclosure auction, an asset was **assigned to Naissance for €616,000.00**, reducing the residual credit to €572,438.29 (the Istanza expressly records this arithmetic: "Euro 572.438,29 (1.188.438,29 sottratta la somma di assegnazione pari ad euro 616.000,00)").
- That €572,438.29 residual, plus €4,761.47 of prededuzione legal fees = **€577,199.76 admitted to the stato passivo** as a mortgage claim.
- Through the subsequent riparto, Naissance has in total received approximately **€130,000** in cash distribution.

So in round numbers, on an underlying credit of ~€1.19m: **~€616k was recovered in-kind via the auction and ~€130k in cash via the distribution** — about half. The residual ~€442k of the admitted mortgage claim remains unpaid. How, on those facts, can the trustee now claim €57k back from Naissance as a "surplus"?

This is a legitimate commercial point. It is not an emotional reaction — the numbers are in the documents the trustee himself is relying on.

Why it still cannot be the primary legal defence — four reasons:

1. **Italian insolvency law separates the two accounts.** The surplus-restitution duty under Cass. 23482/2018 operates on a specific accounting exercise: whatever was paid to the bank from the secured-asset sale, netted against the secured debt. Any excess goes back to the estate. Whether Naissance is globally whole on its underlying mortgage claim is a *separate* question, answered through the riparto ranking.
2. **Art. 56 L.F. set-off does not reach.** Statutory compensation in bankruptcy requires the two debts to exist (and be certain, liquid, payable) before the bankruptcy declaration. The trustee's surplus-restitution claim arose later, from the distribution plan itself.
3. **The admitted €572k claim ranks with other unsecureds** in the riparto chirografario and will realistically recover a fraction on the euro. It does not function as a euro-for-euro offset against a specific surplus-restitution duty.
4. **Pleading "I'm still short" as the headline defence signals misunderstanding of Italian insolvency mechanics** and can lose the judge's sympathy for the genuinely strong quantum arguments in Track 2.

But this argument is far from worthless. It belongs in two places:

- As a **domanda riconvenzionale** (counterclaim / secondary equitable plea) asking the court to take into account the unpaid residual when fixing any restitution quantum.
- As a **settlement lever**: the trustee knows that if he presses for €57k, Naissance can formally reassert a €442k residual claim that the estate still carries on its books. That changes the trustee's cost-benefit.

Assessment as primary defence: <10% chance of winning on its own. Assessment as a settlement/equitable lever alongside Tracks 1–2: genuinely useful — probably worth €10–15k of settlement discount.

Approach 4 — Hybrid three-track defence + parallel settlement channel

This is the approach recommended in Section 3 below. It combines the strongest element of each of the other three approaches:

- from Approach 1, the **procedural finality** argument about the court-approved riparto;
- from Approach 2, **Belardi's caution on the case law** and the focus on quantum;
- from Approach 3, the **net-position argument** — used as a counterclaim / settlement lever rather than primary defence;
- plus two things the first three miss: the **double-counting / interest challenge** in the trustee's quantum, and a protective **notice to Avv. Fiorilli** to preserve the limitation clock on any professional-negligence claim.

The strategy was developed by running three independent lines of argument (aggressive full-defence / quantum-focused / third-party shift) through two rounds of adversarial critique and a red-team stress test. Each line of argument was attacked by agents representing the other positions, and then the consolidated strategy was attacked by agents playing (i) the trustee and (ii) a catastrophic-risk reviewer. The final version below survived all four rounds.

Estimated probability of outcomes under this approach:

Outcome	Probability
Full acquittal (pay nothing)	15–25%
Partial win — claim reduced to €25–40k range via settlement or ruling	40–50%
Full loss — pay ~€57k + interest + costs (total exposure ~€75–85k)	30–40%

This is materially **less optimistic than ChatGPT** and slightly more pessimistic than Belardi's implied view. It is the number to plan around.

3. The recommended strategy

The recommendation is a **three-track defence** filed as a single memoria by the 04.05.2026 deadline, combined with a settlement overture.

Track 1 — Primary legal defence (prededuzione + distribution finality)

Argue that the €130k was received through a **court-approved riparto finale** in which Grahame was correctly ranked as a creditor in prededuzione. The trustee's own filing concedes the prededuzione status. If the trustee's theory is correct, the right remedy was an opposition to the distribution plan at the time — not a claim five years later against a foreign guarantor. Note: Cass. 23482/2018 is against us on this as a matter of pure principle, but there is a legitimate argument that the facts of that case are distinguishable. **Estimated win probability on this track alone: 20–30%.**

Track 2 — Quantum and double-counting

Even if the trustee wins on liability, the €57,536.75 number looks wrong in at least three respects:

- **€30,000 of the claim appears to have been refunded already.** If so, it is being treated as both a cost and a refund — a double-count. This needs to be put to Belardi and tested against the Ricorso's own attached accounts.
- **The documented outflows to Argo Ge.Re.Cre. are €77,000** (two wires: €57,000 on 26.04.2018 and €20,000 on 01.05.2018, evidenced by the Thomas Exchange / Naissance FX confirmations in the project bundle). Any cost line in the trustee's figures that exceeds the evidenced wires needs receipts before it can be conceded.
- **Interest should run from the date of judgment** on a restitution claim of this type, not from 2018.

Even a partial quantum win reduces the €57k claim to ~€25–35k. This is the highest-probability path to a better outcome.

Track 3 — Put Fiorilli on notice

Avv. Fiorilli (Grahame's original Italian adviser, who drafted the 2018 Istanza) is the person who structured the prededuzione claim. If the trustee wins and Grahame has to pay back €57k, Grahame has a potential professional-negligence claim against Fiorilli for advice that led him into this position.

This track is not pleaded in the defence itself — pleading it would look defensive and weaken the primary argument. But a short written notice to Fiorilli (a "lettera di messa in mora") should be sent this month to **preserve the limitation clock**. Belardi can do this as a separate one-page instruction.

Settlement signalling

Alongside the defence filing, open a parallel settlement channel with the trustee targeting **€25,000–€40,000** all-in. The trustee is a professional and the estate has costs too; most of these cases settle. The red-team analysis suggested this is achievable if the quantum arguments are credibly made.

4. What was specifically ruled out

These are things that looked attractive but failed under critique:

- **"The distribution plan is final — case closed."** This is what ChatGPT effectively said. Cass. 23482/2018 directly contradicts it. Relying on this alone would lose.
 - **Attacking the €30k as the trustee's error.** The €30k might be a legitimate prededuzione offset, not a double-count. It should be queried with Belardi, not assumed to be wrong.
 - **Collaterally attacking the prededuzione award.** That ship has sailed procedurally; trying to reopen it damages credibility.
 - **Going on the offensive against Fiorilli in the main pleading.** Rational to preserve the claim privately; irrational to plead it openly.
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5. Confidence level

Moderate, not high. The reasons to be careful:

1. The two Italian case-law citations (**Cass. 23482/2018** and **Cass. 12673/2022**) have been taken at face value because they are pleaded by the trustee in the Ricorso itself — but nobody on our side has independently pulled the full text of either judgment. Belardi must do this before the defence is filed and confirm that they in fact say what the trustee says they say.
2. The procedural vehicle (**memoria difensiva** vs **comparsa di costituzione e risposta**) and the status of the 04.05.2026 date (filing deadline or hearing) need formal confirmation by Belardi from the court file.

3. Alternative trustee theories (**revocatoria fallimentare**, **indebito oggettivo**, **art. 2467 c.c. postergazione**) have not been formally pleaded but could be raised at the hearing. The defence needs to be robust to a pivot.
4. The **€30,000 double-counting point** depends on how the trustee has accounted for that figure in the attachments to the Ricorso. Belardi must verify before it is pleaded.

What would push confidence higher: Belardi confirming the two Cassazione citations, confirming the procedural vehicle, verifying the €30k accounting, and giving his own numeric probability on each of the three tracks.

6. Immediate next steps (this week)

1. **Send the drafted email to Belardi** (attached as .eml file and English PDF). It instructs him formally, shares these findings, and asks him for his independent view on each track.
 2. **Belardi to confirm** (a) hearing vs filing date of 04.05.2026, (b) text of Cass. 23482/2018 and 12673/2022, (c) his own probability estimate, (d) quote for the defence work.
 3. **Grahame to pull together** the FX wire transfer evidence from the project bundle (folder 03) so quantum can be pleaded with receipts.
 4. **Fiorilli notice letter** — Belardi to draft a one-page messa in mora this month to preserve the limitation clock. Does not need to be sent yet, just drafted.
 5. **Settlement authority** — Grahame to decide, privately, the maximum settlement number he would accept. Suggested range: €30k–€45k.
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7. Appendix — the four approaches compared

The table below compares the four approaches side-by-side: the **pros**, the **cons** / reasons each one fails as a standalone strategy, and an **independent estimate of the probability of success** if that approach alone were pursued. The estimates are this report's own view, based on the verified facts of the case and the law as cited in the Ricorso.

Scale used for probability of success: - *Full win* = claim dismissed, Naissance pays nothing - *Partial win* = meaningful reduction (claim settled or ordered at materially less than €57,536.75) - *Full loss* = court orders the full €57,536.75 plus interest and costs (total exposure ~€75–85k)

Approach 1 — "Distribution plan is final — claim is weak" (ChatGPT view)

Pros	Simple to plead. Correctly identifies that the riparto was court-approved, and that procedural finality is a real Italian-law principle.
Cons	Does not engage with Cass. 23482/2018 or 12673/2022 — the exact rulings the trustee relies on. Those rulings say procedural finality does not protect the guarantor from a surplus-restitution claim. Pleading this as the main defence would mean arguing a case the trustee is not making, and losing on the one he is.
Estimated probability	Full win ~10–15% · Partial win ~15–20% · Full loss ~65–75%
Verdict	Unsafe as a primary strategy.

Approach 2 — Cautious legal defence + implicit settlement (Avv. Belardi's line)

Pros	Correctly identifies that the case law is against Naissance on the headline point and that quantum / procedural arguments are where value lies. Professionally credible in front of the judge. Opens settlement channel implicitly.
Cons	As currently scoped, does not yet engage with (a) the €30,000 potential double-count in the trustee's figures, (b) alternative theories the trustee could pivot to (revocatoria, indebito, art. 2467 postergazione), or (c) the net-position arithmetic from Approach 3. Leaves value on the table.
Estimated probability	Full win ~10–15% · Partial win ~25–35% · Full loss ~50–65%
Verdict	Directionally right, incomplete. Needs the extra work in Tracks 2–3 of Approach 4.

Approach 3 — The net-position argument ("only half the €1.188m credit has been recovered")

Pros	The factual starting point is documented and accepted by the trustee: Naissance holds a credit of €1,188,438.29 from the 2017 assignment; €616,000 was recovered at auction, ~€130,000 through the riparto, and €572,438.29 was admitted to the stato passivo and remains unpaid. The point has obvious equitable force and is a strong lever in settlement.
Cons	Italian insolvency law treats the surplus-restitution duty (Cass. 23482/2018, <i>ex lege</i>) as a separate accounting exercise from the guarantor's global make-whole position. Art. 56 L.F. set-off does not reach because the trustee's claim arose post-bankruptcy. The admitted €572k claim ranks with other unsecureds in the riparto chirografario — it does not function as a euro-for-euro offset. Pleading this as the primary defence risks signalling misunderstanding of Italian insolvency mechanics.
Estimated probability	<10% as primary defence. As a <i>domanda riconvenzionale</i> / settlement lever alongside Tracks 1–2: adds ~€10–15k of settlement discount.
Verdict	Use as counterclaim and settlement lever, not as main defence.

Approach 4 — Hybrid three-track defence + parallel settlement channel (recommended)

Pros	Combines the strongest element of each of the other three approaches and adds two things they miss: the €30k double-counting challenge and the protective notice to Fiorilli. Robust to a trustee pivot to revocatoria / indebito. Gives the judge multiple genuine reasons to reduce the number. Opens a parallel settlement channel targeting ~€25–40k.
Cons	More expensive to run than Approaches 1–3 (more legal work for Belardi; a separate short engagement to put Fiorilli on notice). Requires Belardi to verify the Cassazione citations, the procedural vehicle, and the €30k accounting before filing. Not a silver bullet — even this approach carries a material loss risk.
Estimated probability	Full win 15–25% · Partial win 40–50% · Full loss 30–40%. Realistic target outcome: settlement at €25–40k all-in.
Verdict	Recommended. Plan around these numbers.

Summary table — all four approaches side-by-side

#	Approach	Full win	Partial win	Full loss	Main cost if wrong
1	ChatGPT — "plan is final"	~10–15%	~15–20%	~65–75%	Full €75–85k exposure; no settlement groundwork
2	Belardi as-is — cautious defence	~10–15%	~25–35%	~50–65%	Value left on the table; mid-range settlement only
3	Net-position argument alone	<10%	~10–20%	~70–80%	Loss of credibility with judge; weakens Track 2
4	Hybrid 3-track + settlement	15–25%	40–50%	30–40%	Higher legal fees; still a real loss tail

Bottom line: the best realistic outcome is a **settlement at €25–40k all-in**, reached via the three-track defence in Section 3, with the net-position (€1.188m / €572k residual) argument held in reserve as a counterclaim and settlement lever rather than pleaded as the headline defence.

This report is a working document prepared to support instructions to Italian counsel. It is not itself legal advice. Belardi's written opinion, once received, supersedes this document.